

Hind Industries Ltd. v. U.P. Electricity Power Corpn. Ltd.

High Court of Judicature at Allahabad · Division Bench · 13 August 2010 · WRIT - C No. - 43936 of 2002 ·
Modification allowed; Area Level CGM to decide representation

HEADNOTE

On the licensee's modification application, the High Court altered its earlier direction that the Superintending Engineer decide the consumer's representation. Recovery of Rs 98.07 lakhs being above Rs 10 lakhs, the Uttar Pradesh Electricity Supply Code, 2002 vested jurisdiction in the Area Level Committee (CGM), not the Circle Level Committee (DGM/SE) limited to Rs 2 lakhs. The CGM Committee was to decide the representation within one month if not already decided.

FACTUAL SUMMARY

Hind Industries Ltd.'s writ against U.P. Power Corporation was disposed of on 10 October 2002 with a direction to file a representation before the Superintending Engineer. The Corporation later sought modification, stating that recovery of Rs 98,07,899 exceeded Rs 10 lakhs, so under the Uttar Pradesh Electricity Supply Code, 2002 only the Area Level Committee (CGM) could decide; the Circle Level Committee (DGM/SE) was confined to Rs 2 lakhs. Counsel for the petitioner did not appear. The application was listed before a reconstituted Division Bench.

HOLDING-UNITS

HOLDING-UNIT · UP-2002::area-committee

monetary jurisdiction of internal committees on recovery representations

HOLDING

Where recovery against the consumer exceeded Rs 10 lakhs, the representation directed by the earlier writ disposal could not be decided by the Superintending Engineer (Circle Level/DGM, limited to Rs 2 lakhs). The Supply Code 2002 required the Area Level Committee (CGM) to decide it. The Court allowed the modification and directed that Committee to decide within one month, if not already decided. The underlying recovery was not adjudicated. ¶ 1

FLAG order cites Supply Code 2002 committee limits without a clause number

PRINCIPLE TAGS

relegate-to-statutory-remedy On the licensee's modification application, the High Court altered its earlier direction that the Superintending Engineer decide the consumer's representation.. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — MERITS OF THE RS 98,07,899 RECOVERY AND THE CONSUMER'S REPRESENTATION
left to the Area Level CGM Committee; this Bench decided only the forum on the modification application ¶ 1